

SCHEDULE.

ACTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
1 & 2 Vict. c. 56.	The Poor Relief (Ireland) Act, 1838.	Section seventy-six.
1 & 2 Vict. c. 109.	The Tithe Rentcharge (Ireland) Act, 1838.	Section thirty-two.

CHAPTER 59.

An Act to amend Part III. of the Housing of the Working Classes Act, 1890. [8th August 1900]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1. Where any council, other than a rural district council, have adopted Part Three of the Housing of the Working Classes Act, 1890 (in this Act referred to as "the principal Act"), they may, for supplying the needs of their district, establish or acquire lodging houses for the working classes under that Part outside their district.

2.—(1.) The council of any rural district may, with the consent of the county council, adopt Part Three of the principal Act, either for the whole of their district or for any contributory place or places therein.

(2.) In giving or withholding their consent under this section, the county council shall have regard—

- (a) to the area for which it is proposed to adopt the said Part; and
- (b) to the necessity for accommodation for the housing of the working classes in that area; and
- (c) to the probability of such accommodation being provided without the adoption of the said Part; and
- (d) to the liability which will be incurred by the rates, and to the question whether it is, under all the circumstances, prudent for the district council to adopt the said Part.

(3.) The principal Act is hereby repealed to the extent mentioned in the third column of the schedule to this Act.

Exercise of powers outside district.

Adoption of Part Three of Act by rural district council. 53 & 54 Vict. c. 70.

53 & 54 Vict. c. 70.

Provisions as
to metropolitan
borough
councils.

3.—(1.) Any expenses incurred by the council of a metropolitan borough under Part III. of the principal Act, whether within or without the borough, shall be defrayed as part of the ordinary expenses of the council, and in that Act the expressions "district," "local authority," and "local rate" shall, for the purposes of Part III. of the Act, include a metropolitan borough, the council of the borough, and the general rate of the borough.

(2.) Where the council of a metropolitan borough adopt Part III. of the principal Act, the power of the council to borrow for the purposes of that Part shall be exercisable in the like manner and subject to the like conditions as the power of the council to borrow for the purposes of Part II. of that Act.

Accounts.

4. Where land acquired by a council under Part III. of the principal Act is appropriated for the purpose of re-housing persons displaced by the council under the powers of any other Part of that Act or of any other enactment, the receipts and expenditure in respect of that land (including all costs in respect of the acquisition and laying out of the land), and of any buildings erected thereon, may be treated as receipts and expenditure under that Part or enactment, but shall be accounted for under a separate head.

Leases by
local authority
for building
lodging
houses.

5.—(1.) The local authority, if not a rural district council, with the consent of the Local Government Board, and if a rural district council with the consent of the county council, may lease any land acquired by them under and for the purposes of Part III. of the principal Act to any lessee for the purpose and under the condition that the lessee will carry the Act into execution by building and maintaining on the land lodging houses within the meaning of the Act; and the local authority shall insert in every lease all necessary provisions for insuring the user of the land and buildings for lodging houses within the meaning of the Act, and in particular the local authority shall insert in any lease provisions binding the lessee to build on the land as in the lease prescribed, and to maintain and repair the buildings, and securing the use of the buildings exclusively as lodging houses within the meaning of the Act, and prohibiting any addition to or alteration of the character of the buildings without the consent of the local authority; and also a provision for the re-entry of the local authority on the land on the breach of any of the terms of the lease; and every deed or instrument of demise of the land or buildings shall be endorsed with notice of this subsection.

Provided that in the case of a council in London, the consent of a Secretary of State shall be substituted for the consent of the Local Government Board.

(2.) Sections sixty-one and sixty-two of the principal Act shall not extend to any lodging house to which this section applies.

Powers of
county council
to act on
default of
rural council.

6. The council of any administrative county, if a parish council shall resolve that a rural district council ought to have taken steps for the adoption of Part III. of the principal Act, or to have exercised their powers under that Part, and have failed to do so,

may, if satisfied after due inquiry that the district council have so failed, resolve that the powers of the district council for the purposes of that Part shall be transferred to the county council with respect to the parish, and they shall be transferred accordingly, and the resolution shall, if necessary, have effect as an adoption of that Part by the district council, and, subject to the provisions of this Act, section sixty-three of the Local Government Act, 1894, shall apply as if the powers had been transferred under that Act. 56 & 57 Vict.
c. 73.

7. Where land is acquired under Part III. of the principal Act otherwise than by agreement, any question as to the amount of compensation which may arise shall in default of agreement be determined by a single arbitrator to be appointed and removable by the Local Government Board, and subsections (5), (7), (8), (10), and (11) of section forty-one of the Act shall apply as in the case of an arbitration under that section. Provided that in the case of a council in London a Secretary of State shall be substituted for the Local Government Board. Arbitration as
to acquisition
of land.

8.—(1.) This Act may be cited as the Housing of the Working Classes Act, 1900, and the Housing of the Working Classes Acts, 1890 to 1894, and this Act may be cited together as the Housing of the Working Classes Acts, 1890 to 1900. Short title
and extent.

•(2.) This Act shall not extend to Scotland or Ireland.

SCHEDULE.

REPEAL.

Session and Chapter.	Short Title.	Extent of Repeal.
53 & 54 Vict. c. 70.	The Housing of the Working Classes Act, 1890.	The proviso to section fifty-four. Section fifty-five. In section sixty-five, the words from "and save where" to "bear such expenses," and the words "at the time of the publication of the certificate" and "who publish the same."